

Capacity Guidance in the ED

Think first. Before proceeding to Capacity assessment, ask yourself why you are considering doing so and how this potentially will change management.

All adults have the right to make their own decisions and it must be assumed that they have capacity to do so unless it is proved otherwise.

The *Mental Capacity Act 2005* defines a person who lacks capacity as a person who, at the time, is unable to make a decision for themselves because of an impairment or disturbance in the functioning of their mind or brain.

Capacity should be reassessed for each decision and is TIME specific.

Please use the stages and questions below to assess capacity – then document the discussion and reasoning for your decision in the space provided. **This must be completed.**

Is the person suffering from a disturbance of mind **Yes / No**

If yes proceed to the below (functional) criteria:-

a) Understands the information given to them that is relevant to the decision? **Yes / No**

b) Retains the information long enough to be able to make the decision? **Yes / No**

c) Uses or weighs up the information as part of the decision making process? **Yes / No**

d) Communicates that decision? **Yes / No**

Give details below of the discussion you have had with the person in relation to assessing their capacity.

Does the person have Capacity **Yes / No**

If no, describe what decision they don't have capacity to make

If no capacity, please document below what measures are to be put in place/ done. These must be in their best interests and the least restrictive of their basic rights and freedoms.

Signature:

Date:

DD / MM / YYYY

Time (24 hr clock):

__ : __

Print Name:

Designation:

Re-assessment of Capacity

Please use the stages and questions below to re- assess capacity – then document the discussion and reasoning for your decision in the space provided.

This must be completed.

Is the person suffering from a disturbance of mind **Yes / No**

If yes proceed to the below (functional) criteria:-

a) Understands the information given to them that is relevant to the decision? **Yes / No**

b) Retains the information long enough to be able to make the decision? **Yes / No**

c) Uses or weighs up the information as part of the decision making process? **Yes / No**

d) Communicates that decision? **Yes / No**

Give details below of the discussion you have had with the person in relation to assessing their capacity.

Does the person have Capacity **Yes / No**

If no, describe what decision they don't have capacity to make

If no capacity, please document below what measures are to be put in place/ done. These must be in their best interests and the least restrictive of their basic rights and freedoms.

Signature:

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__ : __

Print Name:

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